



CHAPTER clxxvi.

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Wigan in regard to the construction of tramways and street improvements and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS the borough of Wigan in the county palatine of Lancaster is a county borough under the government of the mayor aldermen and burgesses of the borough of Wigan (in this Act called "the Corporation") :

And whereas powers for the construction of tramways and light railways in the borough and in the neighbourhood thereof are conferred by the following Orders and Acts (namely) :—

The Wigan Tramways Order 1879 (confirmed by the Tramways Orders Confirmation Act 1879) ;	42 & 43 Vict. c. exciii.
The Wigan Tramways Order 1884 (confirmed by the Tramways Orders Confirmation (No. 2) Act 1884) ;	47 & 48 Vict. c. lxxx.
The Wigan Corporation Act 1893 ;	56 & 57 Vict. c. clxxii.
The Wigan and District Tramways Order 1895 (confirmed by the Tramways Orders Confirmation (No. 2) Act 1895) ;	58 & 59 Vict. c. ci.
The Wigan Corporation Act 1898 ;	61 & 62 Vict. c. cxxxv.
The Wigan Corporation Tramways Order 1900 (confirmed by the Tramways Orders Confirmation (No. 1) Act 1900) ;	63 & 64 Vict. c. exeviii.
The Wigan Corporation Act 1901 ;	1 Edw. 7. c. clxxxvii.
The Wigan Light Railway Order 1902 ; and	
The Wigan Corporation Act 1902 ;	2 Edw. 7. c. cccxxviii.

and the undertakings authorised by those Orders and Acts are vested in the Corporation except some of the tramways constructed in pursuance thereof which have been acquired by the local authorities for the districts in which they are situate but which are leased or are agreed to be leased to the Corporation :

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Act, 1903.

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And whereas it is expedient to empower the Corporation to construct and maintain the additional tramways described in this Act and in connection therewith to execute the street improvements described in this Act and to make further provision in regard to the tramway and light railway undertakings of the Corporation :

And whereas the tramways authorised by the Acts and Orders confirmed by Parliament hereinbefore referred to have been constructed or are authorised to be constructed on a gauge of three feet six inches and it is expedient to authorise the construction or (as the case may be) the reconstruction thereof on a gauge of four feet eight and a half inches :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purchase of lands for and the execution of the various works authorised by this Act and such estimates are as follows :—

	£	£
For the construction of the tramways authorised by this Act - - - -	13,150	
For the provision and erection of posts standards brackets conductors and other apparatus works and conveniences for the purposes of the said tramways - -	4,000	
	-----	17,150
For the purchase of lands for the street improvements authorised by this Act -	1,350	
For the execution of the said street improvements - - - - -	950	
	-----	<u>2,300</u>

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the sixteenth day of December nineteen hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Wigan Observer* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Secretary of State : A.D. 1903.

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twentieth day of April nineteen hundred and three being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the Wigan Corporation Tramways Act 1903. Short title.

2. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (namely) :— Incorporation of Acts.

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

(2) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective Interpretation.

A.D. 1903. — meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Wigan ;

“The borough” means the borough of Wigan ;

“The council” “the town clerk” “the district fund” and “the general district rate” mean respectively the council the town clerk the district fund and the general district rate of the borough ;

“The recited Acts” means the Acts and the Orders confirmed by Parliament referred to in the preamble to this Act and each of those Acts and Orders is separately referred to as the Act or Order of the year in which it was passed or confirmed by Parliament (as the case may be).

TRAMWAYS.

Power to
make tram-
ways.

4. Subject to the provisions of this Act the Corporation may make form lay down use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates junctions turntables turnouts crossings passing-places posts poles brackets wires waiting-rooms stables carriage-houses sheds buildings engines works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act are—

Tramway No. 1 (5 furlongs 3·31 chains in length whereof 4 furlongs 9·72 chains will be single line and 3·59 chains will be double line) to be situate in the borough commencing in Poolstock by a junction with Tramway No. 1 authorised by the Act of 1902 at a point 60 links from Pool Street measured in a south-westerly direction and terminating in Wallgate by a junction with the existing tramway at a point 1 chain from Caroline Street measured in a north-easterly direction :

Tramway No. 1A (single line 3·00 chains in length) to be situate in the borough commencing in Pottery Road by a

junction with Tramway No. 1 at a point 36 links from the centre of the Leeds and Liverpool Canal Bridge measured in a north-easterly direction and terminating in Pottery Road at a point 2 chains 64 links from the centre of the said bridge measured in a westerly direction :

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Tramway No. 1B (single line 1·70 chains in length) to be situate in the borough commencing in Swan Meadow Road by a junction with Tramway No. 1 at a point 1 chain 37 links from Pottery Road measured in a south-easterly direction and terminating in Pottery Road by a junction with Tramway No. 1A at a point 1 chain 64 links from the centre of the Leeds and Liverpool Canal Bridge measured in a westerly direction :

Tramway No. 3 (7 furlongs 4·04 chains in length whereof 5 furlongs 9·68 chains will be single line and 1 furlong 4·36 chains will be double line) to be situate in the urban district of Pemberton commencing in Warrington Road by a junction with Railway No. 1 authorised by the Wigan Light Railway Order 1902 at a point twenty links from the centre of Marus Bridge measured in a northerly direction and terminating in Poolstock Lane at the boundary of the borough and the urban district of Pemberton by a junction with Tramway No. 1 authorised by the Act of 1902.

5. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of works.

6. For the protection of the Pemberton Urban District Council (in this section called “the Pemberton Council”) the following provisions shall have effect unless otherwise agreed between the Pemberton Council and the Corporation (that is to say) :—

For protec-
tion of Pem-
berton Urban
District
Council.

- (1) The Corporation shall if so required by the Pemberton Council take all electrical energy required for working moving or lighting the carriages on Tramway No. 3 by this Act authorised from the Pemberton Council and the price to be paid by the Corporation for the same per unit as defined in the Pemberton Electric Supply Order 1899 shall be the same as is provided for in the lease dated the seventeenth day of November one thousand nine hundred and two of the tramway in Ormskirk Road Pemberton and the supply of energy to Tramway No. 3 aforesaid shall be deemed to be

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a continuation of the supply provided for in the said lease
Such energy shall be supplied and measured on the trolley
wire feeders at the points at which such feeders leave the
generating station of the Council or any sub-station through
which the supply may be taken :

- (2) Before the Corporation commence the construction of
Tramway No. 3 they shall give to the Pemberton Council
three months' notice in writing of their intention so to do :
- (3) If within three months from the receipt of such notice the
Pemberton Council give notice to the Corporation that they
desire themselves—

- (A) To make form lay down and equip such tramway ; or
- (B) To provide the electrical equipment for working the
same ;

the Corporation shall not exercise the powers by this Act
conferred upon them with respect to the construction and
equipment or the equipment as the case may be of such
tramway and the Pemberton Council shall with all reasonable
despatch make form lay down and equip or provide the
electrical equipment for working such tramway as the case
may be :

- (4) If the Pemberton Council having given notice as aforesaid
of their desire themselves to make form lay down and equip
such tramway fail to complete and equip the same within
one year from the date of giving such notice the powers
conferred upon the Pemberton Council by the foregoing
provisions of this section for the making forming laying
down and equipping the said tramway shall cease to be
exercisable by them and the Corporation may make form
lay down and equip the same or complete the construction
and equipment thereof as the case may be and exercise in
relation thereto the powers by this Act conferred upon them
in that behalf :
- (5) If the Pemberton Council give notice as aforesaid of
their desire to provide the electrical equipment only for
working Tramway No. 3 they shall on being required by
the Corporation by notice in writing so to do proceed with
all due despatch to provide such electrical equipment and
shall erect and complete the same under the superintendence
and to the reasonable satisfaction of the Corporation so that
such electrical equipment may be completed and ready for
use within a reasonable time after the completion of the work

of making forming and laying down such tramway and so long as the Corporation own the Tramway No. 3 they shall pay to the council quarterly a sum equal to nine per centum per annum on the amount expended by the council in providing such electrical equipment :

- (6) The Pemberton Council may within six months from the date of completion and opening for public traffic of Tramway No. 3 by notice in writing require the Corporation to sell and thereupon the Corporation shall sell to the Pemberton Council the said tramway and the electrical equipment for working the same the Pemberton Council paying to the Corporation the sums expended by the Corporation in the construction and erection thereof together with any expenses properly incurred by the Corporation in the employment of others than officers or salaried servants of the Corporation in the superintendence of the work :
- (7) Notice of the intention of the Pemberton Council to make form lay down or equip Tramway No. 3 or to purchase the same and the electrical equipment thereof under the foregoing provisions of this section shall be given only in pursuance of a resolution passed at a special meeting of the Pemberton Council in the manner provided by Part III. of Schedule A of the Tramways Act 1870 :
- (8) If the Pemberton Council either make form lay down or equip Tramway No. 3 or purchase such tramway and the electrical equipment for working the same under the foregoing provisions of this section they shall grant to the Corporation and the Corporation shall accept from the Pemberton Council a lease of the right of user of the said tramway and equipment and of demanding and taking tolls fares and charges in respect of such tramway for a period of twenty-one years from the date of the completion and opening thereof for public traffic or of the purchase thereof as the case may be at an annual rental payable quarterly equal to eight per centum per annum on the sum expended by the Pemberton Council in the construction or purchase of the tramway (including legal and engineering costs and expenses properly incurred in connection with such construction or purchase or in connection with the provision or purchase of the electrical equipment hereinafter mentioned) and nine per centum per annum on the sum

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expended by the Pemberton Council in the provision or purchase of the electrical equipment for working such tramway and on any sums reasonably expended by the Pemberton Council during the continuance of such lease in the improvement or alteration of or additions to such tramway or equipment and such lease shall contain with necessary modifications all such covenants clauses and provisions on the part of the Corporation as are contained in the indenture of lease dated the seventeenth day of November one thousand nine hundred and two and made between the Pemberton Council and the Corporation so far as the same are applicable and are not inconsistent with the provisions of this section and on the execution of such lease the Corporation shall pay to the Pemberton Council the costs and expenses of the Pemberton Council (including those of their solicitors agents and engineers) in respect of the said lease :

- (9) The Tramway No. 3 shall be constructed in accordance with plans sections drawings specifications and estimates to be submitted to and reasonably approved by the Corporation (if such tramway is constructed by the Pemberton Council) or by the Pemberton Council (if such tramway is constructed by the Corporation) and under the superintendence and to the reasonable satisfaction of the surveyor of the Corporation or the Pemberton Council as the case may be and the materials used in the construction of such tramway and of the works connected therewith if constructed by the Corporation (including the paving of so much of the roadway upon which the same is laid as is under the provisions of section 28 of the Tramways Act 1870 as extended by this section to be maintained and kept in good condition and repair by the Corporation in the event of the Pemberton Council not constructing or purchasing Tramway No. 3) shall be of a nature and quality to be reasonably approved by the Pemberton Council :

- (10) During the continuance of any lease granted to the Corporation in pursuance of this section all the powers duties obligations and liabilities by this Act or the enactments incorporated therewith in relation to the maintenance of the roads in which the Tramway No. 3 is situate and of the rails of the tramway and the substructure thereof

and the keeping the same in good condition and repair shall be transferred to vested in and performed by the Pemberton Council :

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Provided that the Corporation shall be responsible for all damages and repairs to the said tramway or roadway caused or made necessary by their negligent acts or defaults or the defective state of their rolling stock and for all damages in respect of accidents or injuries arising from any neglect or default on the part of the Corporation :

(11) If Tramway No. 3 be not either constructed or purchased by the Pemberton Council under the foregoing provisions of this section section 28 of the Tramways Act 1870 shall for the purposes of this Act be read and have effect as if two feet had been mentioned therein instead of eighteen inches Provided always that this subsection shall have no application if the Corporation construct the tramway on a gauge of four feet eight and a half inches :

(12) All expenses incurred by the Pemberton Council in the construction and equipment of Tramway No. 3 or in providing the electrical equipment for working the same or in the purchase of the said tramway and equipment may be paid by the Pemberton Council out of the general district rate of the urban district of Pemberton or out of moneys borrowed on credit of that rate as if the same had been expenses incurred by the Pemberton Council in carrying into effect the purposes of a Provisional Order granted under the Tramways Act 1870 as promoters of Tramway No. 3 and the provisions of section 20 of that Act shall apply as if the said tramway had been authorised by a Provisional Order promoted by the Pemberton Council and all moneys received by the Pemberton Council by way of rent reserved on any lease granted in accordance with the provisions of this section or annual payment in respect of the electrical equipment provided by the Pemberton Council shall be carried to the credit of the district fund of the said district :

(13) For the purpose of performing any duties obligations and liabilities assumed by them under and carrying into execution the provisions of this section or any lease granted thereunder the Pemberton Council shall have and may exercise all or any of the powers by this Act conferred upon the Corporation :

(14) The provisions of section 9 of the Act of 1901 shall not without the consent of the Pemberton Council apply to or in

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the case of Tramway No. 3 or be in force within the urban district of Pemberton and the provisions of sections 15 and 17 of the Order of 1884 and of section 18 of the Act of 1898 which are by this Act extended and made applicable to the exercise of the powers of this Act shall not be exercised by the Corporation within the said district without the previous consent in writing of the Pemberton Council and in any case in which any plan or statement is by this Act or the provisions incorporated with or extended or applied to the exercise of the powers of this Act required to be laid before the Board of Trade a copy thereof shall at the same time be submitted to the council for their approval :

(15) If any difference shall arise under this section between the Pemberton Council and the Corporation the same shall be referred to an arbitrator to be appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply :

(16) Nothing in this Act contained shall prejudice or affect the provisions of the lease dated the seventeenth day of November one thousand nine hundred and two and made between the Pemberton Council of the one part and the Corporation of the other part or the provisions of the agreement dated the twelfth day of August one thousand nine hundred and one and made between the Pemberton Council of the one part and the Wigan and District Tramways Company of the other part or relieve the Corporation of any obligations or liabilities attaching to them under or in pursuance thereof respectively.

Alteration of
gauge of
tramways.

7.—(1) Notwithstanding anything contained in the recited Acts the Corporation may construct the tramways authorised by this Act and such of the tramways authorised by the Act of 1898 the Act of 1901 and by the Act of 1902 as have not yet been constructed and the Corporation or other the owner for the time being of any of the tramways authorised by the recited Acts may reconstruct the same on a gauge of four feet eight and a half inches and may make such alterations in such tramways and in the works and conveniences connected therewith as may be rendered necessary or proper by reason of the alteration of the gauge Provided that—

(A) The powers of this section shall not be exercised with reference to any tramway or any part of a tramway outside the borough except with the consent of the local authority

for the district in which such tramway or part of a tramway is situate or is authorised to be constructed : A.D. 1903.

- (B) Where in the exercise of the powers of this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road (except in cases where prior to the exercise of such powers such less space shall have intervened or as regards tramways not yet constructed would have intervened if the same had been constructed on a gauge of three feet six inches in the manner shown on the plans deposited in respect of those tramways respectively) the Corporation or other the person proposing to lay such rail shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one third of such premises by writing under their hands addressed and delivered to the Corporation or to such person as aforesaid (as the case may be) within three weeks after receiving the notice under this section express their objection thereto.

(2) When any tramway or any part of a tramway has been constructed or reconstructed on a gauge of four feet eight and a half inches in pursuance of the powers of this section the provisions of the recited Acts relating to gauge or to the width of the carriages used on the tramways shall cease to apply to such tramway or part of a tramway.

8. The period limited by section 13 of the Act of 1898 for the completion of Tramway No. 2 authorised by that Act is hereby extended until the expiration of one year from the twenty-fifth day of July one thousand nine hundred and three and that section shall be read and have effect accordingly.

Extension of
time for com-
pletion of
Tramway
No. 2 autho-
rised by Act
of 1898.

9. For the purpose of working any of the tramways authorised by this Act by mechanical power the Corporation may erect construct maintain and use engines works buildings machinery and apparatus and may place construct erect lay down make and maintain on above or below the surface of any streets or roads such posts brackets electric conductors wires apparatus conduits cables tubes and openings as may be requisite or convenient for the convenient working of the tramways or for the transmission of

Works for
mechanical
power.

A.D. 1903. — electricity thereto or to any part thereof and may supply electrical energy from any generating station of the Corporation.

Contracts for supply of energy.

10. Any local authority having power to supply electrical energy in a district in which the Corporation have constructed or are for the time being authorised to construct a tramway or light railway or any part thereof or in which any tramway or light railway or any part thereof for the time being belonging or leased to or used by the Corporation is situate may enter into and carry into effect contracts or agreements with the Corporation for the supply by such local authority to the Corporation of energy for moving or lighting the carriages on any tramways or light railways for the time being belonging or leased to or used by the Corporation whether within or without the district of such local authority and to enable any local authority who shall enter into a contract or agreement in pursuance of this section to carry the same into effect the purposes thereof shall be deemed to be purposes of the Order or Act authorising such local authority to supply electrical energy.

For protection of Ashton-in-Makerfield Ince-in-Makerfield and Pemberton Urban District Councils.

11. For the protection of the Ashton-in-Makerfield Urban District Council Ince-in-Makerfield Urban District Council and Pemberton Urban District Council (each of whom is in this section called "the council") the following provisions shall have effect (that is to say) :—

Notwithstanding anything contained in the section of this Act whereof the marginal note is "Contracts for supply of energy" the Corporation shall not enter into a contract or agreement for the supply without the consent of the council under their common seal by any local authority other than the council of electrical energy for moving or lighting carriages on any tramway or light railway within the district of the council.

Works to form part of tramway undertaking of Corporation.

12. The tramways and works authorised by the foregoing provisions of this Act shall for all purposes form part of the tramway undertaking of the Corporation.

For protection of Leeds and Liverpool Canal Company.

13. Nothing in this Act contained shall prejudice or affect a certain agreement dated the third day of April one thousand nine hundred and three and made between the Leeds and Liverpool Canal Company of the one part and the Corporation of the other part in regard to the widening and improvement of Pottery Bridge Wigan and the laying and maintenance of a tramway thereover.

14. For the protection of the Lancashire and Yorkshire Railway Company (in this section called “the company”) the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect in relation to the construction reconstruction and maintenance under this Act of the tramways authorised by this Act and the recited Acts and the works connected therewith and of any works for the purpose of working the said tramways by mechanical power where the same are intended to cross any bridge carrying any road over any railway siding or works belonging to the company or to pass under any bridge of the company (that is to say) :—

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For protec-
tion of Lau-
cashire and
Yorkshire
Railway
Company.

- (1) In this section the word “apparatus” includes posts brackets electric wires conductors apparatus conduits cables and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the said tramways and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus :
- (2) Before commencing any works on over or under any bridge or the approaches thereto or other work belonging to or maintainable by the company the Corporation shall give fourteen days’ notice in writing to the company of their intention to execute such works and such notice shall be accompanied by plans and sections showing the nature and extent of the intended works :
- (3) The Corporation shall so construct reconstruct or alter and maintain and use the said tramways and apparatus and any works incidental thereto as not to alter or interfere with or injuriously affect the structure of any such bridge or of the approaches thereto :
- (4) If in the opinion of the principal engineer of the company it shall be necessary in consequence of any intended lowering of the road under and adjacent to any bridge carrying the company’s railway over such road to underpin or otherwise strengthen the abutments of the said bridge the company shall be at liberty to carry out such underpinning or strengthening at the cost in all respects of the Corporation :
- (5) In the event of any injury being caused to any such bridge or the approaches thereto by the construction reconstruction alteration maintenance repairing user or removal of the said tramways or apparatus the company may at the expense in all things of the Corporation after giving (except in cases of

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emergency when they shall give the longest notice possible) not less than seven clear days' notice in writing of their intention so to do restore such bridge and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned :

- (6) All works which may be necessary in constructing reconstructing altering and maintaining the said tramways or apparatus over or under any such bridge and the approaches thereto shall be constructed and maintained in all things at the expense of the Corporation and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the company and the Corporation shall repay to the company the expense of any temporary works or watching which may be reasonably necessary to provide for the protection of the railway or the traffic thereon during the carrying out of any works affecting the railway :
- (7) In case it shall become necessary in consequence of the existence or user of the said tramways or apparatus and would not otherwise be necessary having regard to the existing obligations of the company to strengthen the fabric of any such bridge the company may after giving to the Corporation fourteen days' notice thereof execute such works as may be necessary but in all things at the expense of the Corporation :
- (8) The materials forming the substructure of the said tramways where the same cross any such bridge over the railway or are laid along the approaches thereto shall subject to the provisions of this section be such as shall be reasonably approved of by the company :
- (9) No apparatus shall be affixed or attached to any bridge belonging to or maintainable or repairable by the company without the consent in writing of the company but such consent shall not be unreasonably withheld :
- (10) Whenever and so often as the company shall require under their existing powers to lengthen strengthen reconstruct alter or repair any bridge over which any tramway of the Corporation is laid or the approaches thereto or whenever and so often as it shall be necessary in consequence of the existence or user of any such tramway to strengthen the fabric of any such bridge and it shall in

any of such events be necessary for effecting any of such purposes that the working and user of any of the said tramways over any such bridge or approaches shall be wholly or partly stopped or delayed or that the tramways or any apparatus connected therewith shall be wholly or in part temporarily diverted taken up or removed and shall (except in cases of emergency when they shall give the longest notice practicable) give to the Corporation fourteen days' notice in writing requiring such stoppage delay or diversion taking up or removal the working or user of the tramways shall be stopped or delayed or the tramways or apparatus shall be diverted or taken up or removed accordingly by and at the expense in all things of the Corporation and under the superintendence of the engineer of the company (if such engineer shall give such superintendence) but only for so long as it may be absolutely necessary for effecting such purpose and the company shall not be liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto If the Corporation after such notice make default in diverting taking up or removing any such tramway or apparatus the company may at the expense of the Corporation effect such diversion taking up or removal :

- (11) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property by reason of the execution or failure of any of the works by this Act authorised or by reason of any act default or omission of the Corporation or their contractors or servants :
- (12) Where any tramways will pass in front of the entrances to any existing passenger or goods stations of the company no additional crossing passing-place siding junction turnout or other work shall be made for or in connection therewith for the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance without the consent of the company and without such consent no carriage used on the tramways shall be stopped or permitted to be stopped within such distance and lengths except only for so long as shall be absolutely necessary for the purposes of discharging and taking up passengers :

A.D. 1903. (13) If any difference shall arise under this section between
 — the Corporation and the company touching anything to be
 done or omitted to be done or not to be done or the reason-
 ableness of any requirements or of any charges or in any
 manner in connection with the foregoing provisions of this
 section the matter in difference shall unless otherwise agreed
 be determined by an arbitrator to be nominated unless
 otherwise agreed by the Board of Trade.

STREET IMPROVEMENTS.

Power to
make street
improve-
ments.

15. Subject to the provisions of this Act the Corporation
 may make and maintain in the lines and according to the levels
 shown on the deposited plans and sections the street improvements
 hereinafter mentioned with all proper approaches embankments
 retaining walls works and conveniences connected therewith or
 incident thereto and may enter upon take and use such of the lands
 delineated on the deposited plans and described in the deposited
 book of reference as may be required for that purpose or for the
 purpose of providing space for the erection of buildings adjoining
 or near to any street.

The street improvements hereinbefore referred to and authorised
 by this Act will be situate in the borough and are—

Street Widening No. 1 a widening of Swan Meadow Road
 and Pottery Road on the south-east side thereof :

Street Widening No. 2 a widening of Swan Meadow Road
 on the west side thereof :

Street Widening No. 3 a further widening of Swan Meadow
 Road on the west side thereof :

Street Widening No. 4 a widening of Swan Meadow Road on
 the east side thereof :

Street Widening No. 5 a widening of Pool Street on the east
 side thereof.

Limits of
deviation.

16. In the construction of the works authorised by this Act
 the Corporation may deviate from the lines thereof as shown on the
 deposited plans to any extent not exceeding the limits shown on
 those plans of the lands proposed to be acquired for or in connection
 with the said works and from the levels thereof as shown on the
 deposited sections to any extent not exceeding two feet either
 upwards or downwards.

Subsidiary
works.

17. Subject to the provisions of this Act and within the limits
 of deviation the Corporation may in connection with the works

authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe and making compensation for any damage done by them in the execution of the powers of this section.

A.D. 1903.

18. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

19. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
retain sell
&c. lands.

20. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on re-sale or exchange or by leasing as aforesaid in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that—

Proceeds of
sale of sur-
plus lands.

(1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being

A.D. 1903.

unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :

- (2) The borrowing powers by this Act authorised for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

FINANCE AND MISCELLANEOUS.

Power to
borrow.

21.—(1) The Corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say) :—

- (A) For the construction of the tramways authorised by this Act and for the provision and erection of posts standards brackets conductors and other apparatus works and conveniences for the purposes of the said tramways the sum of seventeen thousand one hundred and fifty pounds :
- (B) For the purchase of the lands which the Corporation are by this Act authorised to purchase and the execution of the street improvements authorised by this Act the sum of two thousand three hundred pounds :
- (c) For paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for that purpose :

And with the consent of the Board of Trade such further money as may be necessary for any of the purposes of the tramway undertaking of the Corporation and with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act other than those of the said undertaking.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenue of their tramway undertaking and the district fund and general district rate or either of those securities.

(3) The Corporation shall pay off all money borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed periods”) following (that is to say) :—

As to money borrowed for the purposes (A) within thirty years from the date or dates of borrowing the same :

As to money borrowed for the purposes (B) within fifty years from the date or dates of borrowing the same :

As to money borrowed for the purpose (c) within five years from the date or dates of borrowing the same :

As to money borrowed with the consent of the Board of Trade or of the Local Government Board within such period as the respective Board may sanction. A.D. 1903.

22. Any local authority other than the Corporation owning any of the tramways authorised by the recited Acts may pay all expenses incurred by them in pursuance of the section of this Act whereof the marginal note is "Alteration of gauge of tramways" out of the like rate and shall have the like powers to borrow on the security of the same as if such expenses were incurred in applying for obtaining and carrying into effect a Provisional Order obtained by them under the Tramways Act 1870. Power for local authorities to borrow.

23. The following sections of the Act of 1898 shall with the necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those sections had been re-enacted in this Act (namely):— Application of provisions of Act of 1898.

Section 6 (Correction of errors &c. in deposited plans and book of reference):

Section 8 (Owners may be required to sell parts only of certain lands and buildings):

Section 9 (Persons under disability may grant easements &c.):

Section 10 (Power to purchase additional lands by agreement):

Section 14 (Incorporation of sections of Order of 1884 and Act of 1893):

Section 15 (For purposes of traffic and tolls tramways to form part of tramways authorised by Order of 1879):

Section 17 (As to fares on Sundays or holidays):

Section 18 (Alteration of tramways):

Section 20 (Provisions as to motive power):

Section 22 (Byelaws):

Section 23 (Special provisions as to use of electric power):

Section 29 Subsection 2 (Power to Corporation to work tramways):

Section 30 (Regulations):

Section 41 (Certain regulations of Public Health Act as to borrowing not to apply):

Section 42 (Mode of raising money):

Section 44 (Mode of payment off of money borrowed):

Section 45 (Sinking fund):

Section 46 (Power to re-borrow):

A.D. 1903.

- Section 47 (Annual return to Local Government Board with respect to sinking fund) :
- Section 48 (Application of money borrowed) :
- Section 51 (Protection of lender from inquiry) :
- Section 52 (Corporation not to regard trusts) :
- Section 53 (Appointment of receiver) :
- Section 59 (Expenses of execution of Act) :
- Section 60 (Audit of accounts) :
- Section 61 (Inquiries by Local Government Board) :
- Section 64 (Powers of Act cumulative) :
- Section 66 (Penalties to be paid over to the treasurer) :

Provided as follows :—

- (1) In the application of the said sections the expression “the authorised tramways” shall mean the tramways authorised by this Act :
- (2) In the application of section 8 of the Act of 1898 that section shall be read and have effect as if the Schedule to this Act were therein referred to instead of the First Schedule to the Act of 1898 :
- (3) Section 7 (Cheap fares for labouring classes) of the Order of 1900 shall apply to the tramways authorised by this Act instead of section 29 of the Order of 1879 and in the application of the said section 7 “the promoters” shall mean the Corporation and “the promoters’ lessees” shall mean the body or person for the time being working the tramways :
- (4) The section of this Act whereof the marginal note is “Proceeds of sale of surplus lands” shall apply to the proceeds of the sale of any articles or things referred to in subsection (2) of section 29 of the Act of 1898 as if such proceeds were the proceeds of the sale of any lands acquired and sold by the Corporation under this Act.

Application
of provisions
of Act of
1901.

24. The following sections of the Act of 1901 shall with the necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those sections had been re-enacted in this Act (namely) :—

- Section 8 (Apparatus used for mechanical power to be deemed part of tramway) :
- Section 9 (Attachment of brackets and lamps to buildings) :
- Section 19 (Matters to be taken into account by arbitrators) :
- Section 20 (Restriction on taking houses of labouring class).

25. The following sections of the Act of 1902 shall with the necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those sections had been re-enacted in this Act (namely) :—

A.D. 1903.
Application
of provisions
of Act of
1902.

Section 8 (For protection of Postmaster-General) :

Section 13 (Certain improvements not to be taken into account in determining compensation) :

Section 14 (Costs of arbitration &c. in certain cases) :

Section 95 (Recovery of penalties) :

Provided that in the application of the said section 13 that section shall be read and have effect as if the first day of January one thousand nine hundred and three were therein mentioned instead of the first day of January one thousand nine hundred and two.

26.—(1) Where any notice or demand under this Act or under any Local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

Authentica-
tion and
service of
notices.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any Local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the Company at their registered office or at their principal office or place of business.

27. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys borrowed under the provisions of this Act.

Costs of Act.

A.D. 1903.
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The SCHEDULE.
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PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

Borough.			Number on deposited Plans.															
Borough of Wigan	-	-	3	4	6	8	9	10	11	12	13	14A	15	16	17			
			18	19	20													

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